

Present:

Mr. Justice S.M. Emdadul Hoque  
and  
Mr. Justice Bhishmadev Chakraborty

Death Reference No.21 of 2015

The State.

..... The petitioner.

-Versus-

Alamgir.

..... The condemned-Prisoner.

Criminal Appeal No.1305 of 2015

with

Jail Appeal No. 208 of 2015.

Alamgir.

..... The appellant.

-Versus-

The State

..... The respondent.

with

Criminal Appeal No.1343 of 2015.

Ripon.

..... The appellant.

-Versus-

The State

..... Respondent.

Mr. Harunur Rashid, D.A.G with

Mr. Kazi Bashir Ahmed, A.A.G with

Mr. Zahid Ahammad (Hero) A.A.G with

Mr. Md. Shafiquzzaman (Rana), A.A.G

..... for the State.

(In the reference and respondents of all the appeals)

Mr. A.K.M Fazlul Haque Khan (Farid), with

Mr. Saifur Rahman Rahi, with

Mr. Mohammad Abul Hasnat, Advocates.

..... for the Condemned-prisoner.

Heard on: 11.11.2020, 15.11.2020, 07.12.2020,  
08.12.2020, 15.12.2020. 17.12.2020, 20.06.2021,

21.06.2021, 22.06.2021, 28.06.2021, 29.06.2021  
and judgment on 06.09.2021.

**S.M. Emdadul Hoque, J:**

This death reference has been made by the learned Nari-O-Shishu Nirjatan Daman Tribunal, No.5, (District and Session Judge) Dhaka under Section 374 of the Code of Criminal Procedure for confirmation of the sentence of death awarded upon the condemned-prisoner Alamgir son of late Omar Ali Bapari by its judgment and order of conviction and sentence dated 01.03.2015 in Nari-O-Shishu Nirjatan Daman Case No. 205 of 2006 arising out of Dohar Police Station Case No. 1(8)06 under section 7/9(2)/30 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 as amended 2003 and convicting him under section 9(2) of the said Ain and sentencing him to death and also to pay a fine of Tk. 1,00,000/- (one lac).

The learned tribunal further convicting the condemned prisoner under section 7 of the Ain, and sentencing him to suffer rigorous imprisonment for a period of 14 years and also to pay a fine of Tk. 1,00,000/- in default of suffer rigorous imprisonment for a period of 2 years more.

The tribunal by the same judgment convicting the accused Ripon and Rahid Hasan Milon under section 201 of the Penal Code, and sentencing them to suffer rigorous imprisonment for 7 years with a fine of Tk. 20,000/- each in default to suffer rigorous imprisonment for one year more.

The prosecution case as made out by the informant Kohinur Begum, P.W-1, the mother of the victim, in short, is that her daughter deceased Munni Akter (age about 25) was married to Md. Shah Alam and who was in abroad (Saudi Arabia) at the relevant time and during their wedlock a baby girl age about 6/5 was born.

The further case is that taking the advantage of absence of the husband of victim Munni Akter the brother of her husband namely Md. Alamgir the accused (condemned-prisoner) in several occasions gave her bad proposal for the purpose of grabbing the wealth and property of the victim and her husband. On 14.07.2006 victim Munni Akter went out from house for medical checkup at Joypara bazar and while she reached near the Joypara Bridge then accused Alamgir with the help of other accused namely Lucky, Suruz and Chanchal

abducted her daughter and taken her in a babytaxi. The said facts was disclosed to her by one passerby namely Babul thereafter she search her in several places but could not tress out.

Further case is that on 15.07.2006 at about 9:00 AM the informant the mother of victim made a phone call to the victim Munni Akter in her mobile but which was received by accused Alamgir and who admitted that kidnapped victim Munni and claimed a ransom of Tk.3,00,000/- and if she failed to pay the same they will kill her daughter and thereafter he switched off the mobile phone and subsequently on 01.08.2006 she lodged the Ejahar before the Dohar Police Station.

The further case is that after lodging the F.I.R. one Md. Sumon a boatman from Nawabganj area informed her that accused Ripon hired a engine boat from his father and who sent him as boatman and the said Ripon along with Alamgir and Milon accompanied with the victim Munni get on his boat and went to Bardanpara village of Nawabganj Police Station on 14.07.2006, he purchased oil and food materials and then the accused Alamgir went into the Shahed ~~QB~~ of the said boat

along with victim Munni and covered either side by polyethene and Alamgir rapped the victim forcefully and at that time accused Ripon and Milon took over the control of the engine boat and increasing the sound of the engine of the said boat. Thereafter, accused Alamgir, Ripon and Milon tide-up her neck by her wearing orna and pulling from two side and killed her by strangulation and thereafter also inflected a knife blow on the abdomen of the victim which her intestine come out and thereafter they tide the hands and legs of the deceased and also tide up two bricks and threw her dead body in the Isamati river and returned back and after getting down from his boat accused Alamgir paid him Tk.300/- as fare.

The further case is that after the incident the Nawabgonj police recovered an unclaimed dead body of a woman from the Isamati river on 17.07.2006 and after getting information she along with some of her relatives went to the police station and could recognize the dead body of Munni by looking the wearing cloths and the photo which was taken at the time of recovery of the corpse by the police and she confirmed that which was the dead body of her daughter Munni Akter and the

unclaimed dead body was buried at Jurain graveyard and she also came to know that the post-mortem was held on 18.07.2006 at the Mitford Medical College Hospital, Dhaka. Hence the case.

The case was investigated by Sub-Inspector Md. Shawkat Hossain of Dohar Police Station, who visited the place of occurrence, prepared the sketch map along with separate index, examined the witnesses and recorded their statements under Section 161 of the Code of Criminal Procedure and seized some material documents from the house of the victim Munni Akter, arrested the accused Ripon and Rahid Hasan Milon and sent them to the magistrate for recording their confessional statements and also sent the witness Sumon before the Magistrate for recording his statements under section 22 of the Ain and after completing all the formalities of investigation found *prima-facie* case against accused Alamgir, Milon and Ripon and submitted the charge sheet being No. 51 dated 30.10.2006 under section 7/9(2)/30 of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (amended 2003).

Before the aforesaid case the Nawabganj police recovered an unclaimed dead body of a woman from Ishamoti river near the Koilail village on 17.07.2006 and since none claimed the said dead body the inquest was held by Sub-inspector Imam Hossain the P.W.2 and sent the dead body to the Mitford Hospital for autopsy on the basis of the G.D. No. 753 dated 17.07.2006 and thereafter he lodged ejaher being Nawabganj police station Case No. 10 dated 17.07.2006 under section 302 of the Penal Code.

The said case was investigated by Md. Zulfikar Ali a sub-inspector of Nawabganj police station. Who prepared the sketch map along with separate index and after completing all the formalities of investigation could not found any clue of murder and could not arrest anyone involving with the said murder and accordingly submitted final report. The said record has been tagged with this case.

The case record ultimately came to the file of the learned Judge, Nari-O-Shishu Nirjatan Daman Tribunal No.5, Dhaka who took cognizance and thereafter framed charge against the accused-persons under section 7(9)2/30 of the

Nari-O-Shishu Nirjatan Damar Ain, 2000, read with section 201 of the Penal code, on 13.07.2008 which was read over to them to which they pleaded not guilty and claimed to be tried.

The charge was further amended under section 7/9(1) of the Nari-O-Shishu Nirjatan Daman Ain, against the accused Alamgir and under section 7/9(1)/30 against other co-accused on 08.03.2012.

Subsequently the defence side filed an application under section 231 of the code of criminal procedure but the tribunal after elaborate discussion by its order No. 135 dated 27.01.2013 rejected the said application taking view that inadvertently the earlier charge was amended and as such the trial should proceed on the basis of earlier charge framed on 13.07.2008.

At the trial the prosecution examined as many as 20 (twenty) witnesses among the 22 (twenty two) charge-sheeted witnesses and they were duly cross-examined by the defence but the defence examined none.

The trial court thereafter examined the accused-persons under section 342 of the code of criminal procedure which was



read over to the accused Alamgir and Ripon who were on the dock and they re-iterated their innocence again. The accused Alamgir also submitted a written statement. The accused Milon was not examined since absconding.

Thereafter the learned public prosecutor filed an application for treating the confessional statements made by accused Milon and Ripon under section 22 of the Nari-O-Shishu Nirjatan Daman Ain, 2000, as evidence under section 80 of the Evidence Act, and the same was allowed on 07.08.2014 and accordingly the confessional statements of the two co-accused were made exhibit by the tribunal. The tribunal also made exhibit the statement of the witness Sumon under section 22 without any application filed by the special public prosecutor of Nari-O-Shishu Nirjatan Daman Tribunal.

The defence case as could be gathered from the trend of cross-examination of the prosecution witnesses and the written statement made by accused Alamgir is total denial of the prosecution case. Their further case is that they were innocent and they did not commit the offence and they were falsely implicated in the instant case due to the family rivalry

since the father of accused Alamgir gifted some portion of the property specially the house where they resided in favour of accused Alamgir but the husband of the victim Shah Alam the elder step brother of Alamgir created a false anti-dated document with the help of Notary Public to grab the entire property of his father, the husband of victim implicated him in the instant case long after 18 days of the incident.

The trial Court thereafter on consideration of the evidence on record and the argument as advanced by the parties found the accused-persons guilty of the charge leveled against them and convicted them as aforesaid and made this reference under Section 374 of the Code of Criminal Procedure for confirmation of the sentence of death of the condemned-prisoner Alamgir and sent the record to this Hon'ble court.

The condemned-prisoner Alamgir thereafter filed a Jail Appeal through the concerned authority being No.208 of 2015 and subsequently preferred Criminal Appeal No.1305 of 2015. The accused Ripon the condemned-convict also preferred Criminal appeal No.1343 of 2015.

The Criminal Appeal 1305 of 2015 and Jail Appeal No. No.208 of 2015 preferred by convict-prisoner Alamgir and the Criminal Appeal No.1343 of 2015 preferred by convict-accused Ripon since arising out of the same judgment being heard analogously and disposed of by this single judgment.

It is found from the record of the trial court that the defence side filed an application that the accused Milon died during the trial and accordingly the tribunal directed the police to investigate the matter and the said matter was investigated by the Officer-in-charge, Dohar Police Station and who submitted a report stating that it could not be confirmed that the said convict-accused has died.

Mr. Zahid Ahammad (Hero), the learned Assistant Attorney General took us through the impugned judgment, F.I.R, charged sheet, charged, deposition of the witnesses, the 342 examination, the relevant exhibited documents and the other materials on record.

Mr. Md. Harunur Rashid, the learned Deputy Attorney General appearing on behalf of the State submits that the

prosecution succeed to prove the charge of abduction along with rape and murder beyond all reasonable doubt. He further submits that the date, time and the place of occurrence has been proved and no contrary statement from the side of the defence. He further submits that the identification of the dead body of the victim has proved by the witnesses who after looking the wearing cloths and the photo of the victim which was collected by the Nawabganj police. He further submits that the P.W.10 the tailor who made the dress of the victim Munni Akter could recognize the dead body on the basis of the wearing cloths of the victim. He further submits that though the victim was abducted on 14.07.2006 but the informant lodged the Ejahar on 01.08.2006 after 17 days of the occurrence and the delay of lodging the F.I.R. has sufficiently been explained and the P.W-1 who disclosed the facts why she could not lodged Ejahar immediately after the occurrence and she stated that since she made searching the victim in several places and the accused-persons disclosed that they kidnapped the victim and claimed ransom and due to the social aspects she took some time for lodging the Ejahar and no specific Rule

for lodging the F.I.R. in criminal proceedings immediately after the occurrence and as such defence should not be prejudiced due to the delay in lodging the F.I.R. In support of his argument the learned Deputy Attorney General referred the decision of the case of Major Bazlul Huda -vs. The State, reported in 62 DLR (AD)-1.

The learned Deputy Attorney General further submits that in the instant case the magistrate who recorded the confessional statements of accused Ripon and Milon was not examined but on perusal of the said confessional statements it is found that which was true and voluntary and the magistrate after completing all the formalities recorded the said confessional statements and the police officer who brought the accused-persons before the magistrate identified the accused-persons on the dock and on an application of the prosecution the court took the said two confessional statements as evidence under section 80 of the Evidence Act, in such a case it cannot be said that the said confessional statements of the co-accused should not be the basis of conviction of the condemned-prisoner, even the other

witnesses also corroborated the said facts specially the P.W.4 who was the eye-witness of the occurrence vividly narrated the facts before the court and identified the accused on the dock and the defence could not controvert his evidence and could not find any contrary from his evidence so, it is clear that the prosecution proved the charge leveled against the accused persons beyond all reasonable doubt and the tribunal rightly convicted them. In support of his argument the learned Deputy Attorney General cited the decision of the case of Babul alias Abdul Majid Khan and others –versus- The State, reported in 46 DLR (HCD)-212.

The learned Deputy Attorney General further submits that the defence plea of identity of the dead body has no manner for consideration since from the evidence of the prosecution witnesses it is clear that the victim was taken to the boat by the accused Alamgir on the alleged date and time and the accused Milon and Ripon made confessional statements in support of the said facts and the P.W.4 Sumon was an eye-witness who deposed elaborately and also he made statements before the magistrate under section 22 of

the Nari-O-Shishu Nirjatan Daman Ain, 2000 stating the details regarding the offence and the facts that the accused persons how thrown out the dead body on the Ishamoti River and it is found from the evidence of P.W.2 and P.W.11 that the said dead body was recovered from the alleged place which was mentioned by P.W.4 Sumon, even the said dead body was recognized on the basis of the wearing cloths of the deceased by the P.W.10 and the defence elaborately cross-examined those witnesses but could not find anything contrary to their evidence in such a facts it is clear that the prosecution succeed to prove the case beyond all reasonable doubt.

He further submits that even in absence of discovery or production of the dead body of the murder person conviction can be sustained if the evidence clearly established that a particular person intentional killed the deceased. In support he referred the decision of the case of Shaha and others –vs. The State, reported in 17 BLD (AD)-241.

His next argument is that on the basis of the confessional statements of the co-accused the conviction can

be based against another co-accused who tried jointly with the confessing accused and in the instant case though the recording officer was not examined but which was treated as evidence under section 80 of the Evidence Act, on the application of the prosecution side and there is no bar to accept the said confessional statements and presumed the same as genuine as such the tribunal rightly found that the confessional statements were genuine and on the basis confessional statement of a co-accused the conviction can be based against another non confessing accused and the prosecution also produced some disinterested witnesses who corroborated the said facts as stated by the confessing accused. He relying upon the decision of the case of State – versus- Abdul Kader reported in 67 DLR(AD)-6, and the case of The State -versus- Mir Hossain alias Mira and others, reported in 56 DLR (HCD)-124. He prayed for accepting the death reference and dismissal of the appeal.

On the contrary Mr. A.K.M. Falzul Hoque Khan Farid, the learned senior counsel along with Mr. Saifur Rahman Rahi and Mr. Mohammad Abul Hasnat, Advocate appearing on behalf of



condemned-prisoner Alamgir in Criminal Appeal No. 1305 of 2015 submits that the prosecution measurably failed to prove the case beyond reasonable doubt. He submits that the judgment of the learned Tribunal is purely on conjecture and surmise and which is illegal, improper, unjustified and as such the order of conviction and sentence passed by the tribunal should liable to be set-aside. He further submits that in the instant case any eye-witnesses of the occurrence though the P.W.4 claimed as an eye-witness but on close reading of the deposition of P.W.4 that his evidence cannot be at all believable, corroborated, trustworthy and should be discarded.

He furthers submits that the manner as described by the informant has not been proved specially the case of abduction since in the F.I.R. it has been mentioned the accused Alamgir forcefully abducted her daughter victim Munni Akter near Joypara bridge while she was going to the doctor for checkup with the help of other accused persons and she came to know the said facts on the same day from a passerby namely Md. Babul but in facts the said Babul was not examined even none

from the aforesaid area came forward to support the case of abduction, so, the prosecution case became doubtful regarding the manner and facts of the case. He further submits that the explanation of delay in filing the Ejaher was not sufficient since the missing or abduction of the victim was disclosed on the same day but the informant did not take any steps even after came to know the aforesaid facts the husband of victim returned back from Saudi Arabia on 22.07.2006, who also did not file any G.D. entry or case before the police station till 01.08.2006 in such a facts his submission is that this is a purely concocted case and manufactured one and which was initiated by the husband of Munni due to the family rivalry and to grab the property of the father of the accused Alamgir. He further submits that the informant in her Ejaher stated that on the next day she phoned to the victim on her mobile but which was received by accused Alamgir and she admitted the case of abduction of victim Munni and also claimed ransom of Tk. 3,00,000/- and if she failed to pay the same they will kill the victim, whereas the informant did not inform the same to the police, even she did not take any legal action to recover her

daughter Munni moreover the police also did not submit any mobile tracking to prove the said facts as such the F.I.R. lodged by the informant was concocted, fabricated and manufactured one. His next argument is that none of the witnesses disclosed that victim was forcefully kidnapped from the Joypara bridge area. He further submits that P.W.4 the alleged eye-witness deposed that the accused-persons get on his boat with the victim Munni but none of the independent witnesses support the said facts, even the owner of the boat also did not depose that the accused Ripon took his boat and he sent witness Sumon in the said boat as a boatman, in such circumstances of the facts it is proved that the P.W.4 was a tutor witness and as such the prosecution measurably failed to prove the case of abduction as well as murder.

He further submits that the confessional statements of the co-accused Ripon and Milon has no reliance for conviction of condemned-prisoner since the magistrate who recorded the confessional statements was not examined and after conclusion of the trial on the basis of the application of public prosecutor the tribunal took the same as evidence under

section 80 of the Evidence Act and furthermore the condemned-prisoner Alamgir was deprived to cross examine the recording magistrate and also the 164 statements of co-accused were not taken as evidence at the time of trial as such the condemned-prisoner Alamgir was seriously prejudiced.

He further submits that the case of identification of the dead body is vital in the instant case but none of the prosecution witness could identify the dead body of victim Munni though the prosecution side tried to prove the same by producing the witness P.W.10 Tailor but ultimately it was clear from his cross-examination that he could not identify the said dress which was prepared by him and no other witnesses claimed that they could identify the dead body though the P.W.5 Shabu the brother-in-law of the victim claimed that he could identify the dead body but on close reading of the evidence it is clear that he was not present at the time of recovery of dead body, so the identification of the dead body has not been proved and his evidence should be discarded. Mr. Farid submits that P.W.4 Sumon also stated that he disclosed the facts to P.W.5 and P.W.3 and they disclosed the matter to

the police and the police also examined the P.W.4 but on close reading of the evidence of P.W.2 and P.W. 11 it is found that the said facts as stated by the aforesaid P.W.s has not been corroborated by them as such the said version of those witnesses were totally false statement.

He further submits that no doubt that even in the absence of the discovery or production of dead body of the murder person a conviction can be sustained but in such a case the prosecution should established that the particular person was intentionally killed by the accused person but in the instant case on close reading of the evidence of the prosecution witnesses it is proved that the prosecution measurably failed to prove the case of abduction or taken away the victim in the alleged boat and since the identification of the dead body has not been proved and as such the conviction solely on the basis of the confession of the co-accused cannot be sustained.

He further submits that the conviction under section 7/9(2) of the Nari-O-Shishu Nirjatan Daman Ain, should not be

sustained since the prosecution measurably failed to prove the said charge since the dead body was recovered by the Nawabganj police and which was decomposed and the doctor P.W.17 in his deposition stated that he did not find any singe of rape.

He further submits that though the alleged eye-witness P.W.4 stated that the condemned-prisoner Alamgir had committed rape but it is found from his evidence that he could not see anything what was happening inside the ~~Q~~B of the boat and in his deposition he stated that ~~Q~~B was covered by a polyethene from either side and when he boating then some boats were running nearby the said boat and he look after the same above the ~~Q~~B so, it is clear from his evidence that he could not see nothing which had happened inside the ~~Q~~B

He further submits that on stage P.W.4 disclosed that the accused Alamgir put out the dress of the victim and rapped her but no where he disclosed that he put on the dress of the victim again and it is also found from the evidence of P.W.2, P.W.4, P.W.11 and P.W.20, even in the chalan and inquest

report that the dead body was found wearing with dress of salwar and Kamiz and in such a fact the case of rape as alleged by P.W.4 has not been proved. He further submits that P.W.4 claimed that the victim was murder by pulling the orna over neck of the victim but no case of strangulation was found by the doctor. He submits that the dead body was partly decomposed and it is possible to identify whether the strangulation has been made even in confessional statement accused Milon also did not disclose the facts and the doctor only found injury in the abdominal part of the deceased and opined that the death was due to the said injury in such circumstances of the facts it is clear that the prosecution measurably failed to prove the manner of killing and the case of rape as such the conviction under section 9(2) should not be sustained. In support of his argument he cited the decisions of the case of Babul alias Abdul Majid Khan and others –versus- The State, 42 DLR(AD)-186, the case of Sayed Ali –versus- The State, reported in 7BLC (HCD)-180 and the case of Amir Hossain Howlader and others –versus- The State, reported in

37 DLR(AD)-139 and the case of Amir Hossain Hawlader –vs. The State, reported in 1984 BLD(AD)-193.

The learned Advocate further submits that the prosecution withed some vital witnesses mentioned in the F.I.R. such as the boatman Bachchu Miah, the brother of P.W.4 who negotiated the entire case in the police station in favour of P.W.4, and the witness Babul who saw the incident of kidnaping as such the defence may get benefit of doubt and an adverse presumption may be drawn against the prosecution under section 114(G) of the Evidence Act. In support he cited the decision of the case of Zahirul Islam @ Dipu (Md.) –versus- The State, reported in 20 BLC(AD)-129. The learned Advocate submits that on considering the facts and circumstances of the case it is clear that the prosecution measurably failed to prove the charge leveled against the accused beyond all reasonable doubt. He prayed for rejection of the death reference and allowing the appeal.

In reply the learned Deputy Attorney General submits that though the magistrate who recorded the confessional



statement has not been examined but on the basis of the application of the learned Public Prosecutor the learned Judge has exhibited the same considering the section 80 of the Evidence Act and it is not always necessary that the magistrate who recorded the confessional statement should be examined. Section 80 provides that even without production of the magistrate such statement may be taken into consideration and presume to be genuine. He relying upon the decision of the case of Abul Khayer and three others –versus- The State, reported in 46 DLR (HCD)-212. He further submits that confession of the co-accused can be taken into consideration and on the strength of that confession of another co-accused can be based for conviction of the non confessing co-accused if the said confession was corroborated by other evidence either direct or circumstantial evidence and in the instant case since P.W.4 corroborated the facts as stated by the co-accused the same can be the basis for conviction of the co-accused who tried jointly. He relying upon the decision of the case of The State -versus- Mir Hossain alias Mira and others, reported in 56

DLR(HCD)-124. He prayed for accepting the Death Reference and dismissal of the appeal.

Initially the learned Advocate in Criminal Appeal No. 1343 of 2015 was present before the court but ultimately, he did not make any submission.

Let us discuss the main contention of the evidence of the prosecution witnesses.

P.W.1 Ms. Kohinur Begum, the informant and the mother of the victim, deposed that her daughter victim Munni Akter was 25 years old. The occurrence took place on 14.07.2006 and she was married and at that time her husband lived in Saudi Arabia. She had a daughter aged about 5/6 years. The accused Alamgir made bad proposal in several times to the victim and her daughter was a beautiful girl and accused Alamgir threaten her in several time. **On 14.07.2006 at about 1:00 PM while she was going Jaypara Bazar for medical checkup on the way to the Bazar the accused Alamagir and others namely Lacky, Suruj and Chanchal kidnapped her daughter from Joypara Bridge and they brought her in a**

**Babytexi and she was informed the said fact by a passerby namely Babul.** They searched the victim in several places but could not find out her and on 15.07.2006 at about 9:00 AM she called the victim but which was received by accused Alamgir and admitted the case of kidnapping the victim and demanded ransom of Tk. 3,00,000/- and if she failed to pay the said amount they will kill the victim and thereafter the said mobile was found switched off and on 01.08.2006 she lodged the Ejahar with the Dohar police Station. She proved the said Ejahar as Exhibit-1 and her signature as Exhibi-1/1.

This witness further deposed that after lodging the Ejahar witness Sumon (P.W.4) came to her and disclosed that accused Ripon hired the boat from his farther and his father sent him with accused Ripon. Then accused Alamgir, Ripon and Milon get on his boad and went to Bardhanpara village of Nawabganj police station, from where they purchased oil for engine and running towards Isamati River and they covered the two side of ~~QB~~ of the said boat and the accused Alamgir raped her daughter who made screaming thereafter Ripon and Milon raised the engine noise. Then the accused Alamgir,

Ripon and Milon tied up his daughter's neck and killed her and thereafter stabbed in the abdomen of the victim with a knife and tied-up the victim's hands and legs with ropes and bricks and thrown her dead body into the Ishamoti river. Accused Alamgir paid Tk. 300/- to said Sumon at the time of disembarked from the boat.

She further deposed that after few days of kidnapping a dead body of a woman was recovered by the Nawabganj police from Isamoti River and she came to know that a case was started and the police seized red colour kamiz and black colour veil and some hair tied-up by the said veil. The police took some snaps of the dead body and while she saw the said seized materials could identify the dead body of her daughter. She did not get said information within time and the dead body was buried in the Jurain graveyard as an unclaimed corpse. And her post-mortem was held on 18.07.2006. She identified three accused-persons on the dock.

In cross-examination of the accused Rahid Hasan Milon and Ripon this witness stated that she lodged the Ejahar on

01.08.2006 at 9:15 AM and the date of occurrence was on 14.07.2006 at about 1:00 PM but she did not take any legal step within that period and since could not find out her daughter she lodged the Ejaher and thereafter came to know the details from witness Sumon. On the previous night of the incident victim informed her that she will go Joypara Bazar for medical check-up and which was disclosed to one Vanu she also lived with her. She denied the suggestion that Vanu was not used to live in the house of victim and she knew nothing about the case of rape or killing. Witness Shah Alam (P.W.7) was the husband of victim, P.W.9 Meherjan was the sister of Shah Alam, P.W.8 Rozina was the daughter of Meherjan. P.W.5 Shahabuddin was son-in-law of his another daughter and P.W.16 Monir was his nephew, P.W.13 Babul Mia was brother of his son-in-law and P.W.10 Abul Hossain was the tailor and the name of the father of victim was Mazid Khan who was alived and in the F.I.R. she mentioned his name as Sujahar and accused Ripon and Milon was not mentioned as accused in the Ejaher. P.W.13 Babul disclosed the matter to her and she herself talked with accused Alamgir on 15.07.2006. She denied

the suggestion that since her daughter was abducted and she did not take any legal step and she stated that she searched her daughter and after one week of the incident the husband of victim returned back from Saudi Arabia and he also made search the victim in Dhaka, Khulna and went to one Kabiraj of Khulna and Babul came to her house and disclosed that the victim was kidnapped on 14.07.2006.

She further stated that she could not memorize in which date Sumon disclosed the matter to her. But he came to her house and informed the matter and Sumon went to Thana with her. She further stated that Ramjan was her son-in-law and Karim the brother of her husband informed that Sumon will go to the police station but they are not witnesses in the instant case.

This witness denied the suggestion that she did not meet with Sumon and Sumon disclosed anything to her. She further deposed that Ramjan and Karim was not made witness and she deposed falsely.

She stated that after lodging the Ejaher D.C. Dhaka came to her house with the police escort but did not memorize the said date. In cross-examination this witness stated that the mother of Milon handover a mobile phone set. She denied the suggestion that the mother of Milon did not hand over the mobile set of her daughter. She also denied the suggestion that Milon's mother handover the mobile set was concocted one and the seized materials were not the materials of her daughter. She denied the defence suggestion that it is not true that Milon and Ripon did not kidnap and rape her daughter. She admitted that in the Ejaher she did not disclose the case of rape or kidnapping and killing and nothing was happened and it was not true that the accused-persons were involved with the alleged offence.

In cross-examination of the defence she stated that the Ejahar was written by another person and after reading the same she put her signature. She denied the suggestion that the Ejaher was written by the enemy of accused Alamgir and she denied that the facts as stated in the Ejahar was not true. She denied the suggestion that her deposition was false and which

was not as per the Ejaher and deposed as a hearsay witness and also denied the suggestion that the accused Alamgir did not receive her call when she phoned to her daughter and also denied the suggestion that the case of kidnapping and claiming ransom by the accused Alamgir was not true. She also denied the suggestion that the witness Sumon did not disclose anything to her. She also stated that she had no knowledge whether the father of Alamgir gifted his land property in favour of Alamgir on 22.01.1998 and the step brother of Alamgir the husband of victim made false and antedated documents from notary public on 05.06.1997 and also denied the suggestion that the character of her daughter was not good since the husband was in abroad. This witness also stated that she saw the seized hair, mobile set, bricks and knife in the police station.

In cross-examination of accused Milon and Ripon she disclosed that no special marks on the hair and mobile set of her daughter and denied the suggestion that to create the false case the police officer prepared false seizure list. She



admitted that no documents regarding the mobile set in her hand.

P.W.2 Khandaker Imam Hossain, Sub-inspector of police deposed that on 17.07.2006 he was attached at Nawabganj police station, Dhaka and while he was on special duty came to know that a dead body was found in the Koilail area on the bank of Ishamati river, then he along with constable No. 429 Abdul Jalil went to the place of occurrence and a dead body of a woman was taken from river but none could recognize the dead body and on identification of local Chowkider he conducted the inquest of the corpse. He proved the inquest report as exhibit-2 and his signature as exhibit-2/1 (with objection). He found stab injury in the abdomen and umbilical cord was came out and a knife was on the abdomen and she was wearing a red colour kamiz, a black colour salwar and a scarp was around her neck and bricks were tied-up and the skin of the dead body was peeled off. He took some snaps of the dead body and sent the dead body to the Solimullah Medical College morgue through chalan by constable Jalil for post-mortem. Thereafter he lodged the Ejaher with the

Nawabganj police station on 17.07.2006 and the inquest report was seen by the magistrate while the record of Nawabganj police case No. 10(7)06 placed before him. He investigated the case but since could not find any clue of murder and none claimed the dead body submitted the final report of the case.

He further deposed that one Kohinur Begum mother of deceased Munni lodged Ejaher with the Dohar police station on 01.08.2006 under section 7/30 of the Nari-O-Shishu Nirjaton Daman Ain, 2000 and getting information of the recovered dead body the informant and her relatives came to Thana and he produced the Alamats and snaps of the said dead body before them and thus they could identify the dead body of victim Minni Akter. He submits that he sent the alamats i.e. the inquest report and seizer list to the Dohar police station as per order of the court.

In cross-examination of accused Ripon he stated that after recovery of the dead body he prepared the inquest and sent the dead body to the Morgue for post-mortem and he

investigated the case but could not find and clue and name of any accused as such he submitted the final report. He stated that another F.I.R. was lodged with the Dohar police station about the same matter but he did know nothing in the said case and stated that no original copy of the inquest report in the record and the attested copy was torned.

The State defence adopted the cross-examination as made by the accused Ripon.

P.W.3 Md. Shah Jamal, deposed that he came to know that a woman of Dohar police station was killed in the Nawabganj police station area from the general people and he did not know who killed the deceased and he knew nothing.

The prosecution declared him hostile and cross-examined this witness.

In cross-examination of the State this witness stated that the house of Bachchu Mia situated near his house and he had an engine trawler and Sumon was his son. He denied the suggestion that said Sumon informed him that the accused Ripon hired his boat and also denied that accused Ripon along

with Milon, and weqB of Ripon and his Bhabi get on the said boat and went to Ishamati river. He denied the suggestion that weqB of Ripon did delinquency with his bhabi and also denied the suggestion that after committing offence they tied up her neck with orna and inflected knife on her abdomen. He also denied the suggestion that it is not true that said weqB of accused Ripon tied up two bricks with the orna and thrown out the said dead body in the Ishamoti river and witness Sumom disclosed all the facts to him. It is not true that accused Ripon and Milon threatened Sumon not to disclose the said matter to anyone and Sumon disclosed the same to him. He further denied the suggestion that he also came to know that accused Alamgir brought his bhabi and raped her. This witness also denied the suggestion that he investigated the said matter secretly and disclosed the same to the police as well as the informant. He denied the suggestion that he deposed falsely.

In cross-examination of accused Ripon and Milon this witness stated that he was not examined by the police. The state defence adopted the same.

P.W.4 Md. Sumon Hossain, aged about 18 years deposed that on 14.07.2006 at about 4:00 PM Ripon requested his father to rent the boat and his father told him that he did not just rent the boat. Thereafter, on his request his father did consent that he would send him (Sumon) along with the boat. On the next day at about 1:00 P.M. he went to Dighirpar and an unknown woman and a man came there by a Rickshaw and they get on his boat and told him to go towards Moricha from Dighirpar. He purchased diesel from Bordhanpara and they told him to go towards Moricha and while they reached Moricha they took tea. Thereafter, they told him to go towards Dighirpar and came to Bhanga Vita, then accused Ripon increasing and decreasing the sound of engine and accused Milon and Ripon were on the ~~QB~~ of the said boat. The said woman made shouting then accused Ripon again increasing the sound of the engine. The woman was raped and killed and the accused persons tied up her with orna and also inflected a knife blow on the abdomen and also tied two bricks with the dead body and thrown the dead body into the river and thereafter directed him to go through the canal. When they

saw another boat then they told him to go back. He told them what they did, they told him to keep silent. At that time Milon was sitting on upper of the ~~QB~~ Ripon called Milon to come inside the boat then Milon went inside and Alamgir was still inside the boat. Thereafter, the accused Ripon, Milon and Alamgir threw the dead body of the victim girl into the river. While they returned back in Bardhanpara bazar ghat accused Ripon and Milon picked up accused Alamgir on a bus and accused Ripon washed the blood and Ripon gave him Tk. 300/-. He deposed that Milon had a mobile set in his hand and he received a call and told that said girl came with him and they were in Chittagong and said “don’t worry, the victim was busy so she could not talk.” After a few days of occurrence Alamgir, Ripon and Milon came to him and told whether he disclosed the matter to anyone. And Alamgir threatened to kill him if he told the matter to anyone and he did not meet again with accused Alamgir.

After a few days the dead body was recovered then he could recognize the dead body and he testified to the police and the three accused were on the dock. He also disposed that

he disclosed the said matter to Shah Jamal and he stated that the deck of boat was broken due to scuffle and deceased was wearing a red orna and he also disclosed that there was two bricks in his boat and the accused-persons used the same.

In cross-examination of accused Rahid Hasan Milon this witness stated that he could not memorize the date when he was examined by the police but examined at 10:00 A.M. while he was in Thana. He stated that he went to the police station after taking breakfast along with his brother. He stated that when the dead body was recovered he went there and returned back with Shah Jamal but could not memorize the name of the father of Shah Jamal. He went to Dohar police station with driver Shukur by a babytaxi. Said Shukur was known to him but did not disclose him why he was going to the police station. He did not return back his house and stay in the police station in the said night on the direction of the police officer. Shah Jamal was not arrested and police released him.

In cross examination of the defence this witness stated that he stayed police station in the said night and on the next

day he was brought to the court and was released from the court. In cross he admitted that he could not go out from the said room where he was in the police station since the officer-in-charge directed him to stay in the police station.

In cross examination this witness stated that if he desire he could go outside of the police station. He also stated that accused Milon was also in the police station with him but he did not talk with them. He stated that his father did not come to the police station but his elder brother Mamun came, and could not talk with any police officer. He deposed that he went to Dohar police station after 20/22 days of the occurrence and he did not disclose the matter to his parents or anyone on the said period, his father did not ask him why he stay in the police station and did not ask about the rent.

In cross examination this witness also stated that he saw the dead body at Boxnogor after 20 days of the incident, he could not recognize the victim and did not see any relatives of the victim in the said area and came to know that the brother-in-law of the victim namely Sanju was present there and he



disclosed the said matter to him. Bhanga Vita about 2/4 kilometer from his house and the dead body was found in the Boxnogor area and the police was present near the dead body and discussed about the matter with Sanju and then Sanju brought him to the police station and police asked him details and recorded the statements but he could not memorize who recorded his statement and the police also examined him while he was present near the dead body.

In cross examination this witness stated that he shared the matter to witness Sanju and witness Shah Jamal was also present there. He could not say how many people were present near the dead body but only Shah Jamal was known to him. He could not memorize the date and day when he saw the dead body and corpse was laying on the Chatal. He could not say from where the corpse was recovered or who recovered the dead body but subsequently he stated that police and witness Sanju brought the dead body and he returned back from Boxnogor before sending the dead body to the morgue and he could not memorize how many days after the incident he disclosed the matter to Shafu and Shah Jamal.

His house situated about 2/2.5 hundred yards from the Boxnogor and he did not share the matter with his family members. He stated that he did not disclose the incident to anyone of his family member and also did not disclose to any of the relatives of deceased when he saw the dead body.

He was brought to the court along with accused Milon and Ripon by a Microbus and witness Shah Jamal and Shafu were in a separate car and could not say whether any other relatives came to the court. He stated that he was produced before the magistrate and stated the facts to the magistrate which he disclosed to the police and the magistrate recorded his statement and he could not know whether the said magistrate gave him time before recording his statement.

He saw witness Shah Jamal in the said room and the two accused persons were setting with handicap and no police officer was present in the said room but they were present outside of the room and said two accused remain present in the room while he came out and could not memorize how much time was consumed for recording his statement and he

was not tortured by the police and also not received any threat from police. He denied the defence suggestion that police provided the statement as he stated before the magistrate.

In cross-examination of the defence he stated that the boat was about 22/25 cubits length and 5/6 cubits width. They used the boat for carrying passengers also goods and rented the boat often and there was a  $\hat{Q}\tilde{B}\hat{O}$  in the boat which was 12 cubits length and rest portion was opened by either side which were about 3-4 cubits length. The boat was controlled by a hail and the said hail (paddle) was about 3/4 qubit length and the paddle could not be handled from the  $\hat{Q}\tilde{B}\hat{O}$  and there was a rope in the paddle by which speed of the boat can be increased or decreased, but no such type of engine in their boat and no light in his boat and they used a torch light when running the boat in the river at night.

He denied the suggestion that the engine of the boat was not started by the key but by rope and denied that they were not a majhi family and they maintained their family by boating and there was a system to lap two sides of the  $\hat{Q}\tilde{B}\hat{O}$  by

polyethene which protect the passenger from rain. He stated that they started boating from Bolmond gat and returned back in the said ghat and in the whole journey the hail was in his hand. He admitted that boats and trawlers were running in the Ishamoti river but at that time no trawlers or launches were running in the said area and he had no knowledge about the width of the river. There were market, jute markets and houses on both side of banks of Ishamoti river but no houses in the place where the incident was happened and he had no mobile phone. He could not state the time when he returned back in the ghat but they reached the ghat at evening. He stated that he also running boat in Ishamoti river before the incident and the robberies were happened occasionally in the Ishamoti river but which was not happened in presence of him and police made patrol in the said river to protect the robbery. But he stated that the police made patrol only at the night time and it is not true that the police made patrolling in the said river whole 24 hours since valuable resources were transporting by the boat and trawlers and he did not see any patrol duty. He admitted that sound could be heard when the

engine was started and it could only be possible by guested if any trawlers or boat running beside the boat. He running the boat about 3-4 kilometers and saw several trawlers running towards them but no boat or trawlers were running when the occurrence took place and many branches of the said river such as Bhanga Bhita and another was Moricha canal and only in the rainy session the boat can be run throw the said canal.

He denied the defence suggestion that since they had enmity with the family of Milon and for this reason he falsely implicated him in this case and deposed falsely. He also denied the suggestion that no phone call was received by Milon. He stated that the deck of his boat had been broken at the time of committing rape and killing but he did not disclose the same to the police officer. He stated that there were two bricks in his boat and the accused-persons used the said bricks to throw the dead body to the river. He denied the suggestion that he was involved with the killing and to save him he deposed falsely as per advice of his relatives before the police. He denied the suggestion that he deposed falsely since he was under the custody of the relatives of the victim.

In cross-examination of accused Ripon he stated that he did not know the name of the victim earlier but subsequently came to know the name of the victim Munni. He never met with the informant and went to her house and his brother went to the police station when he was in the police station. He denied the defence suggestion that his brother came to police station to save him from the aforesaid case and he managed to release him from the case and also denied that he deposed falsely as the advice of his brother. He denied the suggestion that the accused Ripon was not present in the boat since he was in Dhaka. He denied the suggestion that he was not examined by the police officer.

In cross-examination he stated that Ripon and Milon from their own locality as such he knew then. He stated that he had no knowledge about the relationship between the victim and her husband and also denied that they had bitter relationship and he did not know accused Alamgir but on stage he stated that he came to know the name of accused Alamgir when the accused persons talked with each other. He also could not say which colour cloths was wearing by accused

Alamgir. He stated that the accused-person threatened to kill him if he disclosed the facts to anyone. He stated that he came to know the relationship of accused Alamgir and victim when they get on his boat.

In cross-examination he also stated that the accused-person did not disclose that they will accompany with woman and if he came to know the same he would not go with them.

In cross-examination he stated that he had no knowledge whether any case was started earlier about the murder. He also stated that he disclosed the matter only to Shah Jamal and Shafu but could not memorize the date and also could not memorize the date of examination by the police. He could not say who lodged the Ejaher and he was not the witness of inquest. He denied the suggestion that the accused Alamgir was not in his boat at the alleged date and time and deposed falsely since he was a relative of the informant.

P.W.5 Md. Sahabuddin Sabu, brother in law of the victim deposed that he knew both the sides. The accused-Alamgir, Milon and Ripon were on the dock. The date of occurrence was

14.07.2006 at evening and when he went to the house of his brother-in-law he came to know victim Munni was missing and they made search in several places but in vain. He went to Joypara on 15.07.2006 and saw the daughter of victim wherein Alamgir was also present there and while he saw him he was running away and then the sister, brother and mother of Alamgir attacked him. When he returned back his house came to know that Munni was abducted and after 5/6 days of said incident he came to know that a dead body of a woman was recovered in the Nawabganj area and he went there along with others but the dead body was sent to the Morgue and they could identify the victim when the police brought the wearing apparels and snaps of victim and the police officer prepared a seizure list. He proved the said seizure list as Exhibit-3 and his signature as Exhibit-3/1. The apparels were red colour and he proved the seized materials as Exhibit- ka, and a kamiz as Exhibit-kha and the said materials were seized in presence of him.

**We have examined the material documents from where it is found that statements and identification was not**



true since he identified the seized materials which were seized by the Dohar police on 02.08.2006 from the house of Munni in respect of Dohar police station case No.01 dated 01.08.2006 and his name was present in the seizure list which was made on 02.08.2006 and the said seized material as Exhibit No. 3 and material Exhibit No. (ka and kha).

He further deposed that the seized materials which were seized at the time of recovery of the dead body of victim Munni were similar colour apparels which were seized from the house of victim Munni. He also deposed that the tailor who made the said apparels was also examined by the police. He proved the red colour kamiz as material Exhibit-Ka and a black orna along with some hairs as material Exhibit No. kha and two bricks of MBC company by which the dead body was thrown into the river as Exhibit- "ga" and the knife about 7" length as Exhibit- "gha". The police seized the same in presence of him and he put his signatures and they could identify the material as used by Munni and for that reason they would confirm that the accused persons killed Munni. (The aforesaid version was purely a false statement since he was not present or not a

signatory in the said seizure list). He also deposed that Nawabganj police recovered the dead body and took some snaps of victim Munni. He proved the snaps of Munni as material Exhibit- “Uma” and subsequently came to know that the accused persons killed Munni and threw the dead body in the river and which was disclosed by the boatman Sumon.

He further deposed that he phoned to Munni and the mobile was received by Milon but he talked as nonsense and subsequently the mother of Milon handed over the said mobile to the police station and the police seized the same and he proved the seized mobile as material Exhibit- “cha” which was Samsung Mobile but could not memorize the sim number.

He further deposed that the boatman Sumon disclosed them that the accused persons raped Munni and killed her and threw into the river

In cross-examination of accused Milon and Ripon this witness stated that he did transport business and at that time he had also electric business, the date of occurrence on 14.07.2006 at about 10:00-10:30 AM and he was in the house

and his house is about 8-10 kilometer from the place of occurrence. He did not see the occurrence but only a hearsay witness. The witness Sumon disclosed the said facts in presence of all. He denied the defence suggestion that the witness Sumon did not disclose the same to him and the victim was the elder sister of his wife.

He denied the suggestion that since he was the close relation of the victim, he deposed falsely. He stated that the accused were not involved with the alleged occurrence but he falsely implicated them in the instant case. He did not see the seized apparels of Munni and he also did not see that Munni went out from her house wearing with said apparels. He denied the suggestion that the apparels which present in the court were not the apparels of Munni and he also denied the suggestion that accused Alamgir was not at all involved with the instant case.

P.W.6, Jhunu, wife of Ajmot deposed that she knew both sides, the accused-persons were on the dock. She deposed that she could not memorize the date of occurrence but

subsequently she told the date of occurrence on 14.06.2006. She deposed that on 14.07.2006, the husband of Munni was in Saudi Arabia and on the said day Munni went out from house to go to the doctor and she came to know that victim was abducted from Joypara bridge by the accused-persons and when Munni went out from her house he told her that: “Avo Avo hgyi Avo eó She further deposed that she was a tenant in the house of Munni and also used to live in the said house to look after victim Munni and came to know that the accused-persons killed Munni.

In cross examination of accused Milon and Ripon this witness stated that she learnt the incident and at that time she was in the house of Munni but could not memorize from whom she came to know the incident and she came to the court with the informant but did not depose as per the instruction of the informant but she deposed as what she knew.

In cross examination of the State defence lawyer this witness denied the suggestion that she was not present in the

house of Munni at the date of occurrence and also denied the suggestion that she did not know anything.

P.W.7 Md. Shah Alam, the husband of the victim Munni Akter, deposed that he knew both the sides and the informant was his mother-in-law. The accused Alamgir, Ripon and Milon was on the dock. He was in Saudi Arabia at the time of incident and on 14.07.2006 he got information from his mother-in-law over telephone that they could not find out victim Munni who was missing and the accused-persons kidnapped his wife and claimed ransom of Tk. 3,00,000/- and the mobile number of his wife was 01714580127 and they demanded ransom calling phone from the said number but his mother-in-law did not pay the same and the accused-persons killed his wife. He deposed that initially the accused-persons raped his wife and thereafter killed her and later on he came to know the said matter from the boatman Sumon, the P.W.4.

In cross- examination of accused Milon and Ripon he stated that he did not submit documents that he was in abroad. He was examined by I.O. on 01.08.2006 in his house.

He denied the suggestion that he did not mention details to the police officer which was disclosed by boatman Sumon. He was not acquaintance with accused Milon and Ripon and he saw them in Dohar police station after they were arrested. He denied the suggestion that the accused Milon and Ripon were not involved with the alleged offence and the police introduced him the said two accused persons. He denied the suggestion that victim was not kidnapped/ abducted and she was not raped and for their internal conflict the victim was hidden and he deposed falsely.

In cross-examination of the State defence lawyer this witness stated that the accused Alamgir was his step brother (younger) and his mother died when he was child but the 2<sup>nd</sup> mother is alived and he returned back from Saudi Arabia on 22.07.2006 and again took 2<sup>nd</sup> marriage on 04.11.2006 and he had no knowledge that accused Alamgir voluntarily surrendered before the court. He further denied the suggestion that on his application accused Alamgir was taken remand by the police and also denied the suggestion that he requested accused Alamgir to transfer the property in favour

of him and admitted that his father gifted their homestead in favour of Alamgir and they have two houses and his father distributed the same between them and denied the suggestion that the house which had in his possession obtained by creating a false document with the help of Notary Public and for grabbing the other property falsely implicated the accused Alamgir in the instant case. He denied the suggestion that on his advice the case was started. He further stated that he tried to hidden his offence and made a false statement and denied the suggestion that the accused Alamgir was not involved with the killing and he deposed false.

P.W.8 Rozina Akter deposed that on 14.07.2006 at noon the accused Alamgir, Milon, Ripon and others kidnapped her ~~guy~~ victim Munni. She identified the accused persons who were present on the dock. This witness further deposed that subsequently she came to know that the accused-persons raped her mami on the boat and thereafter killed her. She did not see the dead body but came to know the incident from the local people.

In cross-examination of the defence this witness stated that she did not see anything but came to know from the local people and could not disclose the name from whom she heard the incident. She denied the defence suggestion that she deposed falsely and did not learn the incident from anyone.

P.W.9 Meherjan, the sister of witness Shah Alam the husband of Munni deposed that accused were Alamgir, Milon and Ripon and Milon was not on the dock and if he present on the dock she could recognize him. The victim Munni was her Bhabi and the accused-persons threw her dead body which was recovered. She also came to know that the accused persons killed victim Munni.

In cross-examination of the defence this witness stated that she did not see the incident. She denied the suggestion that she had no knowledge about the incident but replied that everyone came to know the incident but could not specifically mentioned the name of the accused-persons. She further stated that she came to know the incident from the informant



and she denied the defence suggestion that she deposed falsely relying on the false information.

P.W.10 Abul Hashem, a tailor of the locality deposed that he knew the informant but did not know the accused persons. He came to know the killing of Munni from his uncle. Victim Munni came to his tailoring shop and made a dress. He deposed that he saw the dead body of Munni and the wearing cloths of Munni introducing by I.O. and the said wearing dress almost the same color that dress he made for Munni and he came to know that accused Alamgir, Milon and Ripon killed Munni.

In cross examination of the defence this witness admitted that he did not see the dead body of Munni and could not recognize the accused persons since he did not see the accused persons but only to learn their name. He could not say that he made the dress as introduced by the police officer but which was like a dress of the same color and like a similar design and none disclosed to him or introduced the accused persons and he did not see the incident.

In cross-examination he also stated that the wearing clothes are not present in the court and if the seized cloths is present before court he can say whether which was made by him or not.

P.W.11 Sushil Das, the village defence police (Chowkider) deposed that he could not memorize the date, but which was Monday and on the said day he was performing his duty and saw a dead body of a woman was flouting in the Ishamoti river and he informed the said matter to the police. The police recovered the same and brought the corpse to the police station. He saw four bricks were tided on the neck of the dead body and a knife was in the abdomen and victim was wearing Salwar and kamiz and in his presence the dead body was recovered and the police seized the said bricks and knife on 17.07.2006 and he put his signature in the seizure list. He proved the seizure list as Exhibit No. 4 and his signature as Exhibit No. 4/1.

In cross examination of the defence this witness stated that he being a village police has been functioning the job for

about 38 years. He stated that he saw the dead body at about 10:00 AM while he was on duty but could not know how the dead body came to that area and also could not know the identification of the dead body and after getting information the police came to the place of occurrence within two hours and the police prepared the seizure list. He denied the suggestion that he did not see the dead body.

P.W.12 Kakon wife of Bilal Hossain and sister of victim Munni deposed that the police seized some cloths and prepared the seizure list and she put her signature. She proved the seizure list as Exhibit No.5 and her signature as Exhibit No.5/1. The police also seized a mobile phone which was handed over to the police by the mother of accused Milon and she was present at that time. She proved the said seized mobile as material Exhibit – “Cha”.

In cross-examination of accused Ripon and Milon this witness stated that she did not see the victim Munni went out from her house wearing the seized dress. And also could not memorize the SIM number of Munni but which was samsung

set and the same was not present in the court and did not see who received the same. In cross she also stated that mother of Milon and one of her neighbour handover the said Mobile set and she was present there.

P.W.13 Md. Babul Hossain, deposed that he had a CD business but now he had no such business. The informant was the grand-mother of his elder brother and he only knew accused Alamgir who was on the dock. The date of occurrence was about 4/5 years ago on Friday and he was in his business shop and Munni the sister-in-law of his elder brother accompanied with accused Alamgir came to his CD shop and after a while they went away and after 2/3 days he came to know that the victim Munni was missing. He learnt the same from the informant who also disclosed that the accused persons raped the victim in a boat and killed her and thereafter threw her dead body on the Isamoti river.

In cross examination of the State defence lawyer this witness denied the suggestion that he did not know the accused Alamgir before the incident. **This witness denied the**

suggestion that he did not disclose the name of accused-Alamgir to the I.O. but what can he done if the I.O. did not write the same. He also stated that the police examined him at his shop but could not memorize the date and he had a CD business with license but which was not in his hand and the name of the said shop was Doria V.C.D. center but now he did not do the said business. The owner of the said house was Hazi Abdus Salam. He stated that he did not see the dead body. This witness denied the defence suggestion that he saw the accused on the dock for the first time and also stated that he saw him earlier. He denied the suggestion that the accused was introduced by the informant side at the court while he was on the dock. He denied the suggestion that on the alleged date the victim Munni or none went to his shop and he deposed falsely since the victim was his relative.

This witness was declined to cross-examin by accused Milon and Ripon.

P.W.14 Md. Abdur Rashid, A.S.I. deposed that on 7<sup>th</sup> January/February of 2006 he was attached at Nawabganj

police station as A.S.I. and he physically examined the name and address and wrote the P.C. and P.R. of accused Milon and Ripon on the basis of the letter sent by Dohar police regarding Dohar Police Station Case No. 1(8)06. He deposed that he found that the accused Ripon was a charge sheeted accused of a case under section 307/324 of the Penal Code and accordingly he sent report.

The defence declined to cross-examine this witness.

P.W.15 Abdul Mazid, was tendered by the prosecution. The defence declined to cross examine this witness.

P.W.16 Monir Hossain, the nephew of the informant identified accused Alamgir on the dock but could not identify the two other accused. He deposed that the accused-persons kidnapped the victim Munni and claimed Ransom of Tk. 3,00,000/-. He deposed that the dead body of victim was recovered from the river and he saw the dead body and many people were present there.

In cross examination of the State defence lawyer this witness denied the suggestion that he stated the facts which

was learnt from the local people. He stated that he was present at the place of occurrence and also denied the suggestion that accused Alamgir did not abduct the victim Munni and he was not a witness of the incident. He again replied that he saw the incident. He further stated that he saw from a little distance and deceased was wearing clothes but he could not say where he saw the dead body. He further stated that he disclosed the matter to the police but could not memorize the date. He denied the suggestion that he was not a witness of the occurrence and deposed falsely.

This witness was declined to cross examine by other accused persons.

P.W.17 doctor Bebekananda Halder held the autopsy of the corpse. He deposed that on 18.07.2006 he was attached as a Lecturer of Forensic Medicine Department of S.S.M.C. Hospital and held the autopsy of the corpse of a woman aged about 30 years brought by constable No. 429 Abdul Jalil and found the following injuries:

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) \* x ‡ m ' A"\* ! ‡ ॐ w Qvc, # Ae- ॐ ॐ g v v ॐ  
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 ॐ ( e e ॐ ॐ c ॐ y ‡ v ; Rg ॐ ॐ ( ॐ ॐ vew ‡ ते Iqv  
 ॐ ( ॐ

And made the following opinion: ॐ ॐ y v > ; > I  
 shock hv vA ॐ ॐ R ॐ = v ‡ ! e" A ॐ ॐ g%g ॐ y A ॐ ॐ ॐ = R ॐ =  
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He proved the post-mortem report as Exhibit No. 6 and  
 his signature as Exhibit No. 6/1. He also deposed that he put  
 his counter sign in the inquest report and chalan. He deposed  
 that he himself prepared the post-mortem report.

In cross-examination of the accused Ripon this witness  
 stated that the exhibited post-mortem report was a photo-  
 copy. He denied the suggestion that the statements appears in  
 the photo-copy was not written by him. He stated that the  
 autopsy was held on the basis of Nawabganj police station G.D.  
 No. 753 dated 17.07.2006 and which was also mentioned in



the chalan and no other injury was present in the middle of the abdomen except the mentioned injury and did not find any injury in the neck and he also did not find any sign of rape and it was not mentioned the date of injury. He denied the suggestion that he did not properly hold the autopsy.

The State defence lawyer adopted the cross made by accused Ripon.

P.W.18 Abdul Jalil, constable No. 1440, deposed that he was attached at Nawabganj police station on 17.07.2006 and on the said day at 11:00 AM on receiving the information from Chowkider Sushil of Koilash Union Parishad he went to the bank of Ishamoti river with the duty officer S.I. Imam Hossain and on the identification of Chowkider Sushil with the help of Dom Jamal the dead body of a woman was taken from the river. Thereafter, on the basis of chalan he along with Chowkider Sushil brought the dead body to S.S.M.C. Hospital for holding autopsy. He proved the said chalan and his signature as Exhibit Nos. 7 and 7/1 and had taken the Alamat

which was along with the dead body and deposited the same to the police station.

In cross-examination of accused Ripon this witness stated that they brought an unidentified dead body to the morgue and handed over the same to the concerned authority. The other accused persons declined to cross examine this witness.

The P.W.19 Md. Shawkat Hossain, the investigation officer deposed that on 01.08.2006 he was attached with Dohar police station and entrusted to investigate the case. He visited the place of occurrence, perused the Ejaher, prepared the sketch map along with separate index, seized the alams and prepared the seizure list, examined the witnesses and recorded their statements. He arrested three accused-persons namely Milon, Ripon and Lucky. The accused Alamgir surrendered before the court and Lucky was not sent up in the charge sheet and the another accused Ripon now present on the dock but the accused Milon was not on the dock and if he was on the dock he could recognize him. He further deposed

that accused Alamgir was taken on remand and as such could recognize him and he was in the dock.

The accused Milon and Ripon made confessional statement before the magistrate under section 22 of Nari-O-Shishu Nirjatan Ain, and one of the witness namely Sumon also gave statement before the magistrate under section 22. He deposed that a rape case was initiated in the Nawabgani police station being No. 10 dated 17.07.2006 since an unidentified female dead body was recovered. He further deposed that in his investigation he found that the victim was kidnapped from Joypara bridge area and the record of the case of Nawabganj police station has been received by him and which was tagged in the instant case.

The post-mortem was held on the basis of the case initiated with the Nawabganj police station and the photocopy of the post-mortem report was tagged in this case and the original copy was in the case initiated in the Nawabganj police station. He further deposed that the accused Alamgir did not make confessional statement. He found prima facie

case against the three accused-persons accordingly submitted charge sheet being No. 51 dated 03.10.2006.

He proved the sketch map, index and his signatures present therein as Exhibit Nos. 8, 8/1, 9, and 9/1 respectively. He also proved the seizure list and his signature as Exhibit-3 and 3/2.

This witness further stated that since the dead body was recovered in the Nawabganj Thana area and the post-mortem was held on the basis of Nawabganj police station case by the doctor of Sir Solimullah Medical College, Hospital and he collected a photo copy of the said post-mortem report. He also perused the seizure list made by Zulfiqur Ali Chowdhury of Nawabganj police station. He proved the seizure list dated 19.07.2006 as Exhibit No.10 and the signature of the said Zulfiqur Ali as Exhibit No. 10/1. This witness further deposed that he seized an engine boat and prepared the seizure list dated 08.08.2006 as Exhibit No. 11 and his signature as Exhibit No. 11/1 and which was handed over through a jimma on 09.08.2006 to one Sukur Khan. He proved the said Jimmanama

as Exhibit No.12 and his signature as Exhibit No. 12/1 and signature of Sukur Khan as Exhibit No.12/2. He further deposed that he seized a red color orna and prepared the seizure list on 02.08.2006 as Exhibit No.3 and his signature as Exhibit No. 3/2. He also seized a mobile set and prepared seizure list on 09.08.2006 as Exhibit No.5 and his signature as Exhibit No. 5/2. He further deposed that the two accused-persons made statements under section 22. He deposed that a snap of a decomposed dead body of the victim was seized but he did not prepare the seizure list of the said photo and which was collected from Nawabganj police station for investigation and as per said snaps the identification of the dead body and recognition of the accused were made and looking the said snaps the accused persons admitted the occurrence.

He further deposed that in his investigation it was revealed that initially the victim was kidnapped by the accused persons and thereafter she was raped and killed and her dead body was thrown into the river tiding with bricks. He found prima-facia case against accused Alamgir, Ripon, Milon and submitted charge sheet being No. 51 dated 03.10.2006. The

two accused persons were on the dock and accused Milon now absconding and if he was present in the dock he could recognize him. He further deposed that initially the dead body was recovered from Ishamoti river under Nawabganj police station area as such Nawabganj police station case No. 10 dated 17.07.2006 was started and the said case docket has been attached with the instant case.

In cross-examination of accused Ripon this witness stated that he was attached in Dohar police station before 2 years and was the investigating officer. He stated that Alamgir, Lucky, Chanchal and Suruz were the F.I.R. named accused. Ripon was not F.I.R. named accused but subsequently he was implicated in this case and he made confessional statement. In cross this witness stated that he visited the place of occurrence and prepared the sketch map along with index and in the sketch map the place of occurrence house has been shown as “ka” which was a part of road and “kha” was the main road. He mentioned the details i.e. the owner of the shop and such as mentioned in “ga”, “gha”, “uma”, “cha”, “chha”, “ja” and “jha” but which were not in the index. He examined Rahman son of

Abdul Jalil but he did not mention the details and also did not mention the owner and the employee of the cinema hall mentioned in the index. In cross he stated that he prepared separate P.O. situated near the Joypara Bridge of Joypara bazar from where the victim was abducted.

In cross examination he also stated that the post-mortem report was prepared in connection with Nawabganj police station case No. 10 dated 17.07.2006 and he received the post-mortem report from Nawabganj police. He further deposed that post-mortem was held on the basis of a G.D. filed in the Nawabganj police station.

He further stated that there were several structures in the Bazar and he examined the surrounding people of the said places but did not make them witness. He did not prepare the sketch map from where the victim was taken in the boat and the place where she was raped and killed but he visited the said places and which was mentioned in the CD.

In cross examination he further stated that he was attached with Dohar police station till 07.07.2007 and was

entrusted to investigate the case on 01.08.2006 and completed the investigation on 03.10.2006 and accordingly submitted charge sheet.

In cross-examination of the state defence this witness stated that he prepared the sketch map along with index and the place of occurrence was nearby the Asha Welding Workshop of Joypara and Chorpara road of Dohar police station and nine places were mentioned in the sketch map from "ka" to "jha" and none of the witnesses deposed from the said area and he prepared sketch map and index as Exhibit No. 7 and 8.

**In reply to the question of the court this witness stated that he did not see the dead body and prepared the inquest report but perused the photo copy where in a counter sign of the magistrate was present but he could not say his name. After perusal of the record he subsequently stated that no name in the said report and which all were photo copies.**

He denied the defence suggestion that he did not find any place of occurrence and also the place wherein the victim



was raped and killed and also denied the suggestion that accused Ripon was not at all involved in the gang rape and killing. He further deposed that he did not seize any knife but the Nawabganj police seized a knife. He had no knowledge whether the I.O. of Nawabganj police station mentioned as witness and the said case was attached with this case. He denied the suggestion that without proper investigation of the case he submitted a fictitious charge sheet and deposed falsely.

P.W.20 Md. Zulfiquir Ali Chowdhury, Sub-Inspector of police deposed that on 17.07.2006 he was attached at Nawabganj police station and entrusted to investigate the Nawabganj Police station case No. 10 dated 17.07.2006. He visited the place of occurrence, prepared the sketch map along with separate index. He seized some alamats and prepared the seizure list. He proved the seizure list prepared on 19.07.2006 as Exhibit No. 10 and his signature as Exhibit No. 10/1.

He prepared the seizure list and took signatures of the witnesses. For future identification of the dead body he took

some snaps and sent the same to the surrounding police station. He examined the witnesses and recorded their statements. During his investigation he did not find any name of the accused. He received the post-mortem report and since he was transferred he handed over the CD. After perusal of the record found that the investigation made by the earlier I.O. was true. He visited the place of occurrence, prepared the sketch map along with index, and handed over all the documents of the case docket to the Officer-in-Charge of the police station due to his transfer.

In cross examination of the defence this witness stated that earlier I.O. Khondaker Imam Hossain recovered a dead body of an unidentified woman and sent the corpse for post-mortem and he also made the inquest of the dead body. In his investigation he did not find any proof of murder.

In cross-examination of the accused Ripon this witness stated that he was a witness of Nawabganj P.S. case No. 10 and he conducted the part investigation and could not see the

docket of the said case in the instant case and at the time of investigation he could not find the name of any of the accused.

These are all about the evidence on record as adduced by the prosecution.

We have heard the learned Advocates of both the sides, perused the impugned judgment, the F.I.R, charge sheet, charge, inquest report, post-mortem report and all the relevant documents as available on the record.

The prosecution case was that the victim Munni aged about 25 years the daughter of informant the P.W.1 was kidnapped by accused Alamgir along with Lucky, Suruz and Chanchal on 14.07.2006 at about 1:00 pm from Joypara bridge while she was going to doctor for medical check-up. The said facts was disclosed to the informant by one passerby Babul and subsequently on the next day the informant phoned to the victim but the said Mobile call was received by accused Alamgir and he admitted the facts and also claimed ransom of Tk. 3,00,000/-and if she failed to pay the same they will kill the victim and thereafter switched off the mobile phone.

It appears that though the victim was kidnapped/missing on 14.07.2006, but the informant without taking any legal steps till 01.08.2006 searching the victim in several places such as Dhaka, Khulna and other places and his relatives also were busy in searching the victim and getting information. The husband of the victim Shahalam returned back on 22.07.2006 from Saudi Arabia but he also did not file any case and subsequently the informant lodged the F.I.R. on 01.08.2006.

It is found that a dead body of an unidentified woman aged about 30 years was recovered from the Koilail area of Isamati river, under the Nawabganj police station.

The definite case of the prosecution is that the victim was abducted by the condemned-prisoner Alamgir and three others on 14.07.2006 at 1:00 PM nearby the Joypara Bridge and forcefully brought her in a CNG Babytaxi which was disclosed by one passerby namely Babul. The informant lodged the Ejaher with the Dohar police station on 01.08.2006 also mentioning the above facts.

It is found from the evidence as well as the record that an unidentified dead body of a woman aged about 30 years was recovered from Koilail village area of Isamoti river on 17.07.2006 by the P.W.2 Khondaker Imam Hossain a sub-inspector of Nawabgonj police Station on the basis of G.D. No. 753 dated 17.07.2006 who held the inquest of the corpse and sent the dead body to the Salimullah Medical College Morgue for autopsy and thereafter lodged an ejaher with the Nawabganj police station being Nawabganj P.S. Case No. 10 dated 17.07.2006 without mentioning any name of the accused.

On perusal of the inquest report and the evidence of P.W.2 as well as P.W.11 it is found that which was an unidentified dead body of a woman aged about 30 years and was decomposed, wearing with read colour kamiz, black colour salwar and height of the dead body was about 5'.2" and a scrape was around the neck of dead body and also found two bricks was tied with the dead body and her hands were tied and found a knife from the abdominal part. The said P.W.2 also took a snap and sent the dead body to the S.S.M.C.H. through

constable No. 429 Abdul Jalil the P.W.18 thereafter lodged the ejaher being Nawabganj police station case No. 10(7)/2006 under section 302 of the Penal Code. The case was investigated by Sub-inspector Zulfiquir Ali Chowdhury the P.W.20.

After completing the investigation the P.W.20 Sub-Inspector Zulfiquir Ali submitted final report and disclosed that he could not find any clue of murder and none was found involved with the murder.

It is found that Dohar police station case No. 1(8)06, dated 01.08.2006 was investigated by S.I. Sawkat Hossain P.W.19. In his investigation one Sumon the P.W.4 disclosed the incident and accordingly on 08.08.2006 the two co-accused namely Ripon and Milon were arrested. From the evidence it is found that said Sumon and two co-accused were in the police custody in Dohar police station on 08.08.2006 and on the next day they brought before the magistrate and P.W.4 made statements before the magistrate under section 22 of the Nari-O-Shishu Nirjatan Daman Ain, and the two co-accused Milon

and Ripon made confessional statements under section 164 of the code of criminal procedure. Thereafter on the prayer of the I.O. the Nawbagonj P.S. Case record tagged with this case.

To prove the case the prosecution examined as many as 20 (twenty) witnesses among them P.W.2, P.W.11, P.W.14, P.W.17, P.W.18, P.W.19 and P.W.20 are formal witnesses, P.W.3 declared hostile and P.W.15 was tendered.

From the cross-examination of P.W.1 it is found that P.W.15 Abdul Mozid was the father of victim Munni Akter though in F.I.R. she did not mention the name of the father of victim Munni but mentioned the name of another person and in her deposition she also mentioned the name of the father of victim namely Sujahar instead of Abdul Mozid.

P.W.5 Sahabuddin alias Shabu brother-in-law of victim, P.W.7 Shahalam husband of the victim, P.W.8 niece of Shahalam, P.W.9 Meherjan sister of Shahalam, P.W.12 Kakon sister of victim Munni, P.W.13 Babul Hossain brother of the brother-in-law of victim, P.W. 14 Monir Hossain nephew of the informant. They all are the close relation of the informant the P.W.1 mother of victim Munni.

P.W.4 Sumon Hossain is only the alleged eye-witness and P.W.6 claimed that she used to live in the house of Munni and look after her. P.W.10 Abul Hasem a tailor who claimed as independent witness and victim Munni made two sets of dress from said P.W.10 and he also identified the dress which was seized by Nawabganj police. He only disclosed that the seized wearing cloths of Munni looking as a similar colour which was made by him earlier for Munni and in cross this witness stated that the seized material was not in the court and if the same was in the court he could recognize whether the same was prepared by him or not. The other witnesses also could not specifically stated that they could recognize the seized wearing cloths of unidentified dead body recovered from Nawabganj Police Station area.

The dead body was recovered by P.W.2 Imam Hossain Sub-Inspector of Nawabganj police station on getting information from P.W.11 the village police Sushil Das of Koilail Union Parishad. On perusal of the evidence on record it is found that none could identified the said dead body when the same was recovered. Subsequently the P.W.2 lodged the F.I.R.



with the Nawabganj police station being No. 10 dated 17.07.2006 without mentioning any name of accused. The said P.W.2 also prepared the inquest report and specifically mentioned that the dead body was decomposed and due to bad smell of the dead body none of the woman came to help for making inquest. It is also found from his evidence that the age of the victim was about 30 years wearing with saloar and kamiz and also found a knife from the abdominal part of the dead body. P.W.11 supported the said facts and disclosed that none was present there at the time of recovery of the dead body and the dead body was sent to the Mitford Medical college Hospital morgue for autopsy through chalan by constable Abdul Jalil the P.W. 18 and the doctor Bibekananda Haldar the P.W.17 held the autopsy of the said dead body.

The said doctor deposed as P.W.17 had written the injury and opinion in English language which reveals from the photo copy of the post-mortem report, exhibited by him as Exhibit No.6 but did not produce the original copy. In his deposition he stated to the effect: "A g v g q # v = 91 @ v # A B v 7 A e - v c v ( t c U g f v # f x v v R g ! e " # v \$ f \$ e w ‡ t e t q

! 11 Q' ( ) \* x† m ' A"" ! ‡+ Q' w QDvc, # Ae- vq Q' ( gv vq  
 ψ 0 Q' w 12 teB# c, # Q' ( w fv4 w 5w#4 w 6v A v7 Q' (   
 ee 18-19 c wny ‡ v ; Rgv Q' ( wf m vew vte Iqv Q' (” and  
 made opinion to the effect: “g≤y v> ; # I shock hv vA? v  
 R##= v ‡! e" A? v m g%g≤D Av# Av vq= R##= g≤Q”

In cross this witness admitted that the original post-mortem report is not available and photo-copy is to be exhibited and which was written by himself and he made the post-mortem report on the basis of G.D. Entry No. 753 dated 17.07.2006 of Nawabganj police station and which was mentioned in the chalan and accordingly he held the autopsy of the corpse.

**In cross this witness also stated that he found only one injury in the abdomen and no injury in the neck and also did not find any sign of rape.**

The Nawabgonj police station case was investigated by the P.W.20 S.I. Md. Zulfiquir Ali and in his examination in chief, stated that he visited the place of occurrence, prepared the sketch map along with separate index, seized some alamats such as a read colour used kamiz contained with blood and

which was torned from the upper side and which was swing and also found some hair of the dead body tied with the orna and in his investigation he could not find any name of the accused who committed the offence or any clue and accordingly the said case was ended by submitting final report.

From the evidence of P.W.2, P.W.11 and P.W.18 it is found that none of the witnesses were present when the dead body was recovered except the Chowkider, and dom Jamal and none were examined who put their signatures in the seizure list or inquest report and it is also found that I.O. could not collect any name of the accused who committed the offence or any clue of murder.

Though P.W.4, P.W.5 and P.W.16 claimed that at the time of recovery of the dead body they were present there and police examined them and they could indentified the dead body. But on close reading of the evidence of those P.W.s in respect of looking of the deed body and identification and discloser of the same to the police presumed to be a false statement and thus their evidence became Shaky and shall be discarded. We have given emphasis and under lined the material contradiction and falsehood of their evidence when discussed their deposition.

In the F.I.R. as well as in deposition the informant P.W.1 disclosed that the victim Munni Akter was kidnapped by the accused Alamgir along with 3 others and one passerby namely Babul informed the same to her but the said Babul was not examined. Furthermore he also disclosed that P.W.4 Sumon came to her house and disclosed that the three accused persons along with victim get on his boat and accused Alamgir raped and killed the victim and threw the dead body into the Isamati river with the help of co-accused Ripon and Milon.

On close reading of the evidence on record and facts of the case it is found that the case of abduction of victim Munni by the condemned prisoner Alamgir with the help of others from Joypara Bridge of Joypara Bazar has not been corroborated by any of the witness. The definite case of the prosecution is that the victim was kidnapped by condemned prisoner Alamgir and others from the area of Joypara bridge of Joypara Bazar while victim was going to doctor for medical checkup by the accused Alamgir with the help of Lucky, Suruj and Chanchal and brought her in a Babytaxi. But the aforesaid

case was also not corroborated by any of the witness even the I.O. did not make witness any of the people from the said area.

To prove the said version the prosecution failed to adduce any witness though the informant deposed that the said facts was disclosed by one passerby namely Babul but we found that said Babul was not produced for examination.

However, it is found that P.W.13 namely Babul one of the close relation of the informant in his deposition stated that on 14.07.2006 victim Munni came to his VCD shop along with accused Alamgir at that time he had shop with a trade license namely Doria VCD center. He deposed that after 2/3 days of the occurrence he came to know from the informant that Munni was missing and the accused persons killed said Munni after committing rape and her dead body was thrown into Ishamoti river.

In cross-examination of the State defence lawyer he stated that he disclosed the name of accused Alamgir to the police officer but the police officer did not write the name of said accused in his 161 statement.

Furthermore, he did not mention any time when victim went his shop and none of the witness corroborated his evidence that the victim Munni came to his VCD shop along with Alamgir. From his evidence it is clear that he did not disclose the facts of abduction/kidnapping of the victim Munni to the informant rather he came to know that the victim was missing after 2/3 of the occurrence from the informant. So, the said facts that victim Munni was kidnapped by the accused Alamgir has not been proved since the informant stated that she came to know the same from one passerby namely Babul but he was not examined. If the said Babul to be considered as P.W.13 we find that he also did not corroborate the said facts that victim was kidnapped from the Bridge area by accused Alamgir and others.

It is also found from the evidence of P.W.1 that the accused Alamgir forcefully taken away the victim and brought her by a CNG Babytaxi with the help of 4 other co-accused. But said facts also has not been corroborated by any of the single witness as such the case of abduction of victim Munni by

accused Alamgir has not been corroborated by any of the witness.

Considering the evidence on record and the discussions as made above and the submission of the learned Advocate it is our considered view that the prosecution miserably failed to prove the case of abduction by the condemned prisoner Alamgir with the help of others.

Though as per provision of law the meaning of abduction is not only a forcefully taken away.

Sub-section Kha of section 2 of Nari-O-Shishu Nirjatan Ain, define the meaning of abduction which as under: “AcniY00 A\_@ejc0M evc0y iqvevd0jv qvev y eyv qvev x c0 0 iqv v!v n 7 v e# 7 Ab# v 7 ev# i(”

Thus the meaning of abduction is that if anyone has been taken away by a person by using force, allurement, temptation, cajoling or coaxing from any place to elsewhere. But in the instant case we have already considered that the case of abduction has not been proved.

In the instant case none of the P.W.s were the witness to see the dead body which was recovered from the Isamati river of Koilail village of Nababgonj police station except P.W.2, P.W.11 and P.W.18 and they were the witness of recovery of dead body of unidentified woman aged about 30 years. From their evidence it is clear that none of the witness were present and disclosed the incident of murder. It has been discussed that though P.W.4, P.W.5 and P.W.15 claimed that they saw the dead body but considering the evidence on record we have already decided that their evidence could not be said true. The P.W.1, the mother of the victim also did not see the dead body. In her deposition though she stated that she could recognize the victim Munni while she saw the photography of the alleged victim and her wearing cloths. P.W.5 Shabu also deposed that he could recognize the dead body of Munni while saw the seized materials i.e. wearing cloths of Munni.

This witness also disclosed that he came to know that Munni was abducted by accused Alamgir and others. In his deposition one stage he claimed that after 5/6 days of the occurrence they came to know that a dead body of woman



was recovered by the Nawabganj police and accordingly he along with others went there and came to know that the dead body was sent to the Mitford Medical College Hospital for autopsy. From his testimony it is clear that only showing the wearing cloths and snaps of the victim he claimed that which was the dead body of deceased Munni.

Though he claimed that he put his signature in the seizure list and proved the same as Exhibit-3 and his signature as Exhibit-3/1 and also proved the alamsats as material Exhibits. But on perusal of the seizure list Exhibit-3 was not the wearing cloths of Munni which was seized by Nawabganj police, but admittedly the said material was recovered from the house of Munni by the Dohar police station after lodging the Ejahar on 01.08.2006. Subsequently he identified the said wearing cloths and the seized two bricks as material Exhibit-“ka”, “kha” and “ga”, and the seized knife as material Exhibit-“gha” but he was not a signatory of the said seizure list.

In cross-examination of the defence he disclosed that he did not see the occurrence but he only came to know the same from one Sumon the P.W.4 and he also disclosed the same to

everyone. From his evidence it is clear that the he was not the witness of seizure list which were seized from the dead body of victim, as such his testimony regarding the materials seized by Nawabganj police was not true and that portion is totally a false statement.

The P.W.7 the husband of the victim at the relevant time stay at Saudi Arabia and on getting information from his mother-in-law he returned back on 22.07.2006. In his deposition he stated that he came to know that the accused-persons initially raped her and thereafter killed the victim and which was disclosed by the boatman Sumon. He did not disclose that he could recognize the dead body of Munni while he saw the photography of Munni which was taken by Nawabganj police. The P.W.8 is a hearsay witness and the nephew of the husband of victim, P.W.9 the sister of P.W.7 they were hearsay witnesses.

The P.W.16 nephew of the informant claimed that he saw the dead body when the same was recovered but in cross he could not say that whether any cloths wearing with the

dead body and also could not memorize the date of recovery of the dead body.

From the evidence of P.W.10 who disclosed that the apparels seized from the dead body by Nawabganj police in a similar colour dress which he made for Munni. But it is found that he could not clearly stated that the said dress was made by him, since the seized materials were not brought to the court and no other witnesses came forward to prove the seized wearing cloths and claimed that the seized alamats all were the wearing cloths of deceased Munni. Though the tailor P.W.10 claimed that he saw the dead body which is not true since on stage he disclosed that he saw the dead body after 20 days. Whereas the said dead body was recovered after 4/5 days of the occurrence.

On close reading of the evidence on record and the discussions as made above it is our view that the prosecution could not prove the recognition and identification of the dead body of Munni beyond reasonable doubt.

In the instant case the P.W.4 Sumon is only the allged eye witness of the occurrence and in his deposition he stated

that he disclosed the facts to the P.W.3 and one Shanzu but P.W.3 was declared hostile and Shanzu was not examined.

Now the question is whether the case of rape has been proved or not. It appears that the P.W.4 was the witness of rape committed by the accused Alamgir. From his deposition it is found that when Alamgir along with the victim under the same was covered from either side by polyethene and in cross he stated that he could not see the running boat which was coming towards his boat crossing nearly their boat under the but from upper of the On Stage he stated that Alamgir undressed the victim and raped her but he did not mention that the accused Alamgir dressed up the said victim after committing rape. From his evidence it is found that the victim tried to save her and he found sound from inside of the but disclosed that after committing rape accused Alamgir tied a orna around the neck of deceased which was used by the victim and pulling the same he killed the victim. He also inflicted a knife blow on the abdominal part of the victim and intestine came out, thereafter he called the accused Ripon and Sumon who were on the upper part of the

In the inquest report the description of the dead body mentioned as under: **)) \*y +, v c. # j v j v/0- v j m v t j v q i - +1\* v**  
**Ab j v b 2 0 3 4 ( M j v q c. c \* v b v ( m v t \_ 5 e v v 6 b n v e v v M v t q i m v t \_ (**  
**cv! 7 ve cvmn m v i v i x i i \* V . v + , v v e - c # 5 d v v v e b v . 8 evni**  
**n 9 q v c. # i m v t j v q i v/0 c v b # c \* v 9 : . v n v c v t q i A v y < t j v**  
**d j v ( 0**

On perusal of the chalan it is also found that: **)) ( c i # q**  
**j v j v/0 : . v 4 ( c i # q v t j v m v t j v q i : . v ( 0**

The P.W.2 in his deposition stated that he recovered the dead body and found the dead body wearing with cloths and stated that: **)) n j v i M v t q j v j v/0- c. # v t j v m v t j v q i 9 M j v q c.**  
**c \* v b v : j > e? 5 e v v : j 0**

P.W.11 the Chowkidar Sushil Das also deposed in the same nature that: **)) j v 5 i M j v # @ 5 5 e v v : j ( > 5 \* v z c # 5 / v i v**  
**: j v ( j v # m v t j v q i v/0 c. v : j ( M j v # e v v : j 5 ( 0**

The doctor P.W.17 who held the autopsy did not find any sign of rape. From the aforesaid facts it is our view that the defence succeed to make a doubt about the case of rape and if any doubt found then which goes in favour of the defence.

Now we have considered the statement and testimony of P.W.4 Sumon the alleged eye-witness. We have perused the evidence of P.W.4 regarding the identification of the dead body in cross-examination of Rahid Hasan Milon he stated to the effect: **))Av/ cÖ/ jv ` A eBbm i jv 0#bi #i /# # C5bvi Ab/Ab 4D `b c#i eBbm i jv ` A:( jv 5 l Ab :5v \*bv M :j( mAvb j# i v Av E# :j bv 0Fm v #i 0bjv /Gvi MhZ m0y mAvb Av# ( m0y m#\_ Av# c i\*q :j bv( l `b Av/ m0y m#\_ \_v e#j :jv( mAvb Av/ e#j : l 0ebeJxi \_v m #i /# # l KY jv :j /# bv( mAvb jv `#A: m v v 5v! b5 Av/ vi ev x \_# 4L@ #jv/5i `8i l v v 5i \_vej bv( jv c0qv v v 5( jv bq v 0qvi m/q eBbm i jv ` A:( j# i m#\_ cyj :j( j# i # m0# C5bvi \_vej#j m0ycy# i # bq v v( cyj e#j :j )Av b Ab C5bv0vbb l Ab Av/ vi m#\_ 9 C5bve j#eb0cyj Av# bq v v bv( cyj Av/ vi 0ebeJx#j#A: j bv/ # bv( j# i # cyj Av# 0Fm v iqv: j( Av/ Av/ j# vej : l v cyj # e#j : ( cyj 9 `v#v/ i /# #cv\_#ey bv( j# i # l Ab q0b cyj :j /# bv( Av/ 2/ Mxcv( Av/ m0# C5bvejvi m/q v 0Vj :j( l `#i Av# v 0Vj C5bv 0vbb bv( l `b m#zAv/ vi b# , bv 0Fm v #i :j( cyj 0Fm v #i bv( j# i # l < j jv :j Av/ Mbbv i bv( #i /# #N'y v 0Vj# c i\* ` A( Av/ b#0 jv `#A:**

2 viA / #b bv ( evi 9 m/q / #b bv ( jv 5 ` A \*5v #qi +c#i : j ( jv 5  
 \*5v 0iv / v v : j bv Ajv : j / #b bv ( \*5v 5 / v5i +c i bv vb  
 5ej ev vb vben#bi +c#i : j / #b bv ( jv 5 v\_vq c9qv Mqv: j ev  
 >#b: 2 vnv0vb bv( cyj 9 mvd>#b: ( eBbm i jv 5 2 KY : j / #b  
 bv ( jv eBbm i \_v # \*#j Avm bv jv eBbm i \_# b#q 9qvi ci  
 Avl \*#j Avm / #b bv ( eBbm i mvd9 v 0Vvj# C5bvi ejvi 2 `b ci  
 \_bvq Avm mEY bv ( 0

From the above statements of P.W.4 it appears that he saw the dead body after 20 days of the occurrence at Boxnagor area which presumed to be false and his evidence should not be trust worthy on such fact.

On close reading of the evidence of P.W.4 and the cross-examination it is our view that his evidence could not be trustworthy and by the said evidence it is difficult to convict the accused-persons only relying upon his evidence. Furthermore it is our view that he may be a tutor witness. To believe any evidence it should be the confidence of the mind of the court.

It is settled principle that conviction can be based on the basis of the solitary testimony of a single witness provided

under section 134 of the Evidence Act, if the courts finds the evidence is wholly and fully reliable, free from all doubts and suspicion, complete and self contained and it stands fully corroborated by circumstantial evidence. This principle supported by the decision of the case of Abdul Hai Sikder and another –vs. The State, reported in 43 DLR (AD)-95, the case of Abdul Quddus –vs. The State, reported in 43 DLR (AD)-234, the case of Yusuf Sk. Alias Sk Abu Yusuf –vs. The State, reported in 29 DLR(SC)-211, the case of Badsha Mia (Md) –vs. The State, reported in 2 BLC (AD)-179, the case of Zakir Hossain and another –vs. The State, reported in 61 DLR (AD)-70 and the case of Yousuf Bepari (Md) –vs. The State, reported in 10 BLC (AD)-146.

But on careful examination of the evidence of P.W.4 it is our view that his evidence cannot be said trustworthy, fully reliable and cannot be said that no suspicion on his evidence.

We have already consider and discuss his evidence and from careful examination it is found that the prosecution succeed to make shaky and doubtful of his evidence and since some doubt has been find out from his evidence in such a case



and considering the above decisions and his evidence has also not been corroborated by any of the witness even the owner of the boat did not depose furthermore the prosecution failed to prove any witness that the victim and accused get on his boat from the alleged ghat of River.

Now we have considered the confession of the two co-accused made under section 164 of the code of criminal procedure.

It also appears that the recording officer of confessional statement of the two co-accused has not been examined. It also appears that after 342 examination and conclusion of the argument the learned public prosecutor filed an application for taking the said confessional statements as evidence under section 80 of the Evidence Act, which was allowed by order No. 124 dated 07.08.2014.

We have also considered the 164 statements of the two co-accused which are exculpatory in nature so far as relates to committing rape and killing.

Mr. Farid the learned Advocate argued that the conviction cannot be awarded solely on the basis of the

confessional statements of the co-accused. He relying upon the decision of the case of Babul alias Abdul Majid Khan and others –versus- The State, reported in 42 DLR(AD)-186. He further cited the decision of the case of Amir Hossain Howlader and others –vs. The State, reported in 37 DLR (AD)-139, wherein the principle laid down that the statement of co-accused within the definition of the evidence has giving in section 3 of the Act, the simple reason is that it is not made on oath that it is not made in present of the accused and excluded from cross-examination it is their quick evidence against the co-accused, if it is regarding in the said deposition.

The principle settled in the aforesaid decision that the confessional statements of co-accused is admissible against other accused persons and may be taken into consideration against them along with other evidence but section 30 of the Evidence Act, the confessional statements of one co-accused will be in admissible in evidence against another view of section 3 of the act.

In the case of State –versus- Mobile Kader reported in 67 DLR(AD)-6, wherein the principle settled that: *“Confession*

*of a co-accused cannot be treated as substantive evidence against the other person to find him guilty of the offence charged with and it would requires other evidence whether direct or circumstantial linking such a person with the crime, before a confession made by a co-accused can be adverted to in adjudging the guilt of the person.”*

Our Apex court also considering the section 30 of the Evidence Act, took view that when co-accused tried jointly for the same offence and confession was made by such person effective evidence and some other of 3<sup>rd</sup> person is proved the court may into consideration of confession whether against such other or 3<sup>rd</sup> person as well as against persons who made the confession.

In the said case it has been considered that the P.W.1 and P.W.5 deposed in support of the case of the prosecution. But the instant case none corroborated their confessional statement and we have already considered that evidence of P.W.4 should not be trustworthy and fully believable.

Considering the aforesaid view it is also found that not only the confessional statement but confession of such an

accused may lend assurance to the other evidence. In the case of Babor Ali Mollah –vs. The State, reported in 44DLR(AD)-10 wherein the principle laid down: *“Since, we have earlier held that the substantive evidence is unreliable and there being no other evidence the confession cannot be considered against the appellant in the present case.”*

In the case of Ibrahim Mollah and others –versus- The State, reported in 1987 BLD(AD)-248, (in majority) it has been settled that: *“It is no confession but a testimony against the other accused when the maker does not involve him in any part of the commission of the alleged offence- Prosecution should have examined the confessor as a witness instead of making him an accused so that the other accused could cross examine him- If the direct oral evidence does not qualify to be trustworthy the alleged confession can be of no avail for sustaining conviction.”*

And in the case of The State –versus- Mir Hossain alias Mira and others, reported in 56 DLR(AD)-213, our apex court also considered the provision of section 80 of the Evidence Act, and considering the confessional statements made under

section 164 of the Code of Criminal Procedure took view that:

*“Moreover, it is now settled principle of law that statement recorded under section 164 can be used against the maker by the prosecution to corroborate the statement of the maker and by the defence for contradiction. In the instant case, the maker i.e. the victim while deposing as P.W.6 before the court did not support the prosecution case, she was cross examined on behalf of the prosecution by declaring her hostile but the prosecution did not bring it to her notice the statement which was recorded under section 164 of the code of criminal procedure. Moreover, no explanation was given as to why the magistrate who recorded the statement of the victim under section 164 of the code of criminal procedure was not produced before the tribunal for examination. For all these reasons, there was no scope of placing reliance upon the above statement recorded under section 164 of the code of criminal procedure. We may here reproduce the observations of the Privy Council which was subsequently consistently followed by the courts in this sub-continent. The observation are as follows.*

*A statement made under section 164 of the code of criminal procedure can never be used as substantive evidence of the facts stated, but it can be used to support or challenge the evidence given in court by the person who made the statement.”*

Our Apex court further held: From the aforesaid facts it is found that the court took view that evidence given by witness during investigation cannot be considered in criminal proceedings as provided under section 80 of the Evidence Act, so, we are of the view that the High Court division wrongly consider the confessional statements recording 164 during the investigate and not in a judicial proceeding. And it is also the settled principle that the aforesaid confessional statements recorded under section 164 of the code of criminal procedure cannot be used against the maker.

In the instant case we have already found that the aforesaid confessional statements was not Exhibited at the time of deposition by the witnesses but which was taken as evidence after ending the trial and as such as per the aforesaid decisions it is found that the convict-prisoner had not given

any opportunity to cross examine about the said matter and in the aforesaid decision it has been settled that the accused is also prejudiced for not examining the recording officer.

On close reading of the evidence though it is found that the P.W. 13 claimed that at 1:00 PM victim Munni came to his shop along with accused Alamgir but we have already considered that defence took suggestion that he did not disclose the name of the said person to the I.O. and in cross he stated that though he disclosed the name of the said person but the I.O. did not write the same and did not try to find out the name of the accused. Even no evidence that accused Alamgir and victim get on the boat of Sumon on Friday at 1:00 PM from Dighirpar.

We have already considered the aforesaid provisions of law and the discussions as made above that the prosecution measurable failed to prove the case that the recovered dead body was the dead body of victim Munni and also at the time of examination of the accused under section 342 of the code of criminal procedure the confessional statements of two co-

accused has not been brought to the notice of the condemned prisoner.

The learned Advocate Mr. Farid referred the decision of the case of Zahirul Islam @ Dipu (Md) –versus- The State, reported in 20BLC(AD)129, wherein it has been decided that: *“It is undoubtedly the duty of the prosecution in a case involving capital sentence to place before the court all available witnesses irrespective of their evidence being favourable or unfavourable. Where a necessary witnesses mysteriously not cited as witness, the court may properly draw an inference adverse, to the prosecution. If a material witness has been deliberately kept back, then a serious reflection is cast on the validity of the conviction. A grave and heinous crime has been committed but there is no satisfactory proof of the guilt we have no option but to give the benefit of doubt to the accused.”*

The vital witnesses of the instant case one passerby Babul from whom the informant came to know the alleged abduction, one Sanju the P.W.4 Sumon informed the incident of him and the owner of the boat from whom the accused



persons rented the boat were not examined. In such a case the learned Advocate Khan argued that the adverse presumption under section 114G of the Evidence Act, should be drawn against the prosecution referring the decision of the case of Zahirul Islam @ Dipu (Md.) –versus- The State, reported in 20 BLC(AD)-129.

It appears that the trial court convicted the accused under section 7 of the Nari-O-Shishu Nirjatan Daman, Ain for abduction of the victim Munni along with other sections.

We have already discussed that the prosecution measurably failed to prove the case of abduction or kidnapping by producing any reliably witness and it is also found that the defence succeed to make doubt about the case of rape and the evidence of P.W.4, and the confessional statements of the co-accused which are exculpatory confession so far as relates to rape and murder. It is also considered that the prosecution measurably failed to prove the identity of the dead body which was recovered by the Nawabganj police from Isamoti river that which was the dead body of victim Munni beyond all reasonable doubt.

Having considered the facts and circumstances of the case it is our view that the prosecution failed to prove the charge under section 9(2) of the Nari-O-Shishu Nirjatan Daman Ain, 2000, leveled against the accused Alamgir beyond all reasonable doubt and as such it is our view that the conviction under section 9(2) of the Nari-O-Shishu Nirjatan Daman Ain, 2000, against the condemned-prisoner Alamgir should not be sustained.

We have considered the Criminal Appeal No. 1343 of 2015 preferred by convict Ripon. The learned Advocate did not appear before this court to make submission in favour of appeal. And on close reading of material evidence on record we found that the said accused was convicted under section 201 of the Penal code for disappearing of dead body and from the record it is found that the said Ripon was arrested on 01.08.2006 and obtained bail on 07.02.2013 which is more than 7 years if we upheld his conviction then the period of his sentence has already been served out.

We do not go through the merit of the case of accused Ripon but since he was in custody for about 7 years and thus the Criminal Appeal No. 1346 of 2015 is hereby disposed of.

Thus the appellant Ripon is discharged from his bail bond.

Having considered the facts and circumstances of the case, the evidence on record and the discussions as made above, we find merit in the appeal preferred by the condemned prisoner Alamgir.

In the result, the Death Reference is rejected. The Criminal Appeal No. 1305 of 2015 is hereby allowed and Jail Appeal No. 207 of 2015 is disposed of. The impugned judgment and order of conviction and sentence passed by the learned Judge Nari-O-Shishu Nirjatan Daman Tribunal No.5, Dhaka in Nari-O-Shishu Nirjatan Case No. 205 of 2006 arising out of Dohar Police Station Case No. 1(8)06 under section 7 and 9(2) of the Nari-O-Shishu Nirjatan Daman Ain, 2000 (as amended 2003) are hereby set-aside.

The condemned-prisoner Alamgir, son of late Omar Ali Bapari be set at liberty forthwith if not wanted in connection with any other cases.

Communicate the impugned judgment and order and send down the lower Court records at once.

***Bhishmadev Chakraborty, J:***

I agree.

M.R.